SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
August 14, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. **Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.**
2. **Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org**

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

https://sanmateocourt.zoomgov.com/ **Meeting ID:** 161 576 6143 **Password:** 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	**Title / Nature of Case**
9:00 AM Line 1	
23-CIV-01610	UN HUI FAITH NAM, MD, ET AL VS. CITY OF REDWOOD CITY, ET AL

UN HUI FAITH NAM CITY OF REDWOOD CITY	MICHAEL C. GUASCO KEVIN E GILBERT

Defendants' Motion for Terminating and Issue Sanctions

TENTATIVE RULING:

Defendant Redwood City's motion for terminating sanctions regarding the First Amended Complaint filed by Plaintiff Un Hui Faith Nam, M.D and Brian Munneke, PhD., on December 22, 2023, is GRANTED. The request for issue sanctions is DENIED AS MOOT.

A. Background

On or about August 29, 2020, Dr. Nam was contacted at her home by five Redwood City Police Officers on the basis of a report that she had violently repossessed a puppy she had previously fostered and adopted to alleged victim Cynthia Woodman. (Comp. ¶ 12.) The entire arrest was captured on plaintiff's home security cameras. (Comp. ¶ 13.)

On or about October 17, 2022, Plaintiff was sentenced for violating Penal Code Section 148 for willfully delaying a peace officer. On March 3, 2023, the Court granted Dr. Nam's Motion for Early Termination of Probation under Penal Code Section 1203.3. Dr. Nam had a hearing for Petition to Seal Arrest Record scheduled for April 5, 2023. (Comp. ¶ 11.)

On February 23, 2024, Defendant served their Form Interrogatories (Set One), Special Interrogatories (Set One) and Request for Production of Documents (Set One) ("Discovery Requests") on Plaintiff. Because the City did not receive responses to the outstanding discovery by the deadline or for several months thereafter, Defendant scheduled an Informal Discovery Conference ("IDC") for August 28, 2024. The IDC was held, and the Court issued a Minute Order for Plaintiff to serve amended responses and produce documents by September 11, 2024.

On September 13, 2024, Plaintiff served amended responses to Defendant's Discovery Requests. Most of the responses were still woefully deficient. On October 28, 2024, Defendant filed Motions to Compel Further Responses to its Requests and Requests for Sanctions. (Declaration of K. Houle-Sandoval iso motion for terminating sanctions, ¶ 3, Exhs. B-D.) On April 11, 2025, the Court granted defendant's motions, finding intentional delay and non-compliance and awarded sanctions totaling $6,440. (*Id*. Ex. E.)

To date, more than a year after the above Court Order, Plaintiff has not served further responses to Defendant's Discovery Requests nor produced documents responsive to the RFP in violation of the Court's order. (Houle-Sandoval Decl., ¶ 6.) Additionally, Plaintiff has not paid the sanctions in violation of the Court's Order. (Id. at ¶ 7.)

Defendant filed the instant motion requesting both terminating and issue sanctions due to her failure to respond to the Court's order on the motions to compel and the sanctions ordered, pursuant to Code of Civil Procedure sections 2023.010, 2023.030, 2031.310, subd. (i), 2031.320, subd. (c) and 2030.300, subd. (e).) Plaintiff filed a late opposition, contending that plaintiffs' lack of responsiveness was due to former counsel's lack of competence, the breakdown of the attorney-client relationship and an unfulfilled promise to produce responsive documents. Unexplained was Dr. Nam's failure to comply, as she is also a licensed attorney.

B. Legal Standard

Misuse of the discovery process is a sanctionable offense under the Civil Discovery Act (Code. Civ. Proc. §§ 2023.010, 2023.030 [defining types of sanctions available]) and in the instant motion plaintiff requests the Court level nearly every manner of sanction available. Code of Civil Procedure, section 2023.030 provides that, to the extent authorized by any particular discovery method, the court may impose monetary, issue, evidence or terminating sanctions. Code of Civil Procedure, sections 2030.300, subdivision (e) and 2031.310, subdivision (i) state that if a party fails to obey and order compelling further responses, the court may make those orders that are just, including the imposition of an issue, evidence or terminating sanction. "Sanctions are not to be used 'to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits' [citation], and a more severe sanction is disfavored if a lesser sanction is available [citation]." (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 75.) "Among the myriad purposes of the civil discovery statutes is to safeguard against surprise and gamesmanship, and to prevent delay." (*Williams v. Travelers Ins. Co.* (1975) 49 Cal.App.3d 805, 810.)

Whether to grant a sanction is entirely within the discretion of the court. (Weil & Brown § 8:1207; *Pember v. Superior Court* (1967) 66 Cal.2d 601, 604.) The court's choice of sanctions is reviewable only for abuse of discretion. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213; Code Civ. Proc., §§ 2023.010; 2023.030 [describing "misuses of the discovery process", which include "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery"], section 2023.010, subdivisions (d), (g).) The court's decision on a request for sanctions should reflect the purpose of discovery sanctions which is to enable the party seeking the discovery to obtain the information sought, not to punish a disobedient party. (*Ghanooni v. Super Shuttle of Los Angeles* (1993) 20 Cal.App.4th 256, 262.)

> When exercising its discretion to determine which form of sanction is most appropriate for a discovery violation, a trial court should consider various factors, including "the importance of the materials that were not produced—from the perspective of the offended party's ability to litigate the case—and what prejudice, if any, the offended party suffered ... ." [Citations.]

(*Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1158.)

C. Discussion

Here, the Court's review of the separate statement in support of the motion demonstrates that the answers are indeed wholly inadequate, long overdue, and utterly not code-compliant. Plaintiff was ordered on April 14, 2025 to serve verified, code-compliant responses, without objection, to Requests for Production Nos. 2-7, 11-14, 16-17, and 21-30 within ten days; to produce responsive documents within twenty days; and to pay sanctions in the amount of $2,240. (Declaration of Kelly Houle-Sandoval, ¶ 4, Ex. E.) Plaintiff has not served further responses, produced documents, or paid the sanctions. (Id. at ¶¶ 6, 7.) Instead, the opposition brief to this motion promises (once again) full compliance with court orders and with discovery with "full, complete, and objective-free responses to outstanding requests and will produce responsive documents." (Opp. p. 2.) That response supplies no facts, it is a bare promise that at this point is not credible. Furthermore, counsel states his late substitution and the full breakdown of attorney client relationship with plaintiff's former counsel as the reason for lack of compliance, yet as of this date no discovery has been provided. (Houle-Sandoval Decl. ¶¶ 6 & 7.)

Plaintiff utterly ignores the lengthy history and extraordinarily long passage of time which impacts this decision. Notably, for discovery served in early 2024, the IDC was held on August 28, 2024, almost two years past. There was no compliance. The resulting motions to compel were than granted by Order of April 11, 2025, over one year ago. Still no compliance. This has clearly prejudiced the Defendants.

The Court has already issued monetary and evidentiary sanctions, but they had no impact in having Plaintiff comply with the discovery requests. Terminating sanctions are typically a last resort to be used sparingly, but they are justified in the first measure in "extreme cases" where a litigant violates a court order and "persists in the outsight refusal to comply with discovery obligations" (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.) This is such an extreme case. As stated above, a review of the responses and the record demonstrates plaintiff's willful, ongoing and persistent refusal to comply with the Court's orders. As such, termination is appropriate in the interest of justice.

Accordingly, the Court GRANTS defendant's request for termination of the operative complaint. Because the matter is terminated the request for an issue sanction is DENIED AS MOOT. In addition to an Order after hearing, Defendant is to also file a Judgment for dismissal of Plaintiff's complaint with prejudice.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM
Line 2
24-CIV-05539 ERAY ERBAY VS. HUSEYIN TOSUN, ET AL

ERAY ERBAY	BRIAN M CARTER
HUSEYN TOSUN	SUSAN E. BISHOP

Cross-Defendant's Motion for a Continuance of Trial and Related Dates

TENTATIVE RULING:

Cross-Defendant Muslum Caferoglu moves for a trial continuance in this matter. Cross-Complainants Huseyn Tosun and Sema Tosun oppose the motion.

The underlying employment action in this case, filed by Plaintiff Eray Erbay, has been resolved. The Tosuns' Cross-Complaint is now the only operative pleading seeking relief in this action. The cross-complaint asserts contractual indemnification, equitable indemnification, and contribution against Caferoglu.

Caferoglu's motion to continue trial is GRANTED. Parties may appear to confirm availability for the dates stated below.

Caferoglu's request for judicial notice of the Cross-Complaint (Ex. 1), his Answer (Ex. 2), Cross-Complainants' Motion to Quash (Ex. 3), and Cross-Complainants' Motion for Summary Adjudication (Ex. 4) is GRANTED.

Cross-Complainants' request for judicial notice of this Court's pre-trial order No. 1 (Ex. A), This Court Minute Order re: April 23, 2026 IDC (Ex. B), and Cross-Complainants' Motion for Summary Adjudication (Ex. C.) is GRANTED.

Legal Standard

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, rule 3.1332, subd. (c).) Circumstances that may indicate good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable

circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(*Ibid.*)

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination, which may include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules of Court, rule 3.1332, subd. (d).)

Analysis

Caferoglu argues that he has been unable to obtain banking records that are essential to this case, despite diligent efforts. Caferoglu seeks to obtain by subpoena bank records establishing that he did not have check-writing authority when employed at Stamp Bar and Grill, owned by the Zeyher Corporation.

Cross-Complainants allege that Caferoglu had an ownership interest in Zeyher and an exerted significant authority in the management of Stamp Bar and Grill, including the authorization to issue checks on Zeyher's behalf. (Cross-Defendants' RJN, Ex. C, Motion for Summary Adjudication ("MSA"), at p. 2.)

Caferoglu argues that the bank records are essential to his case. The subpoena demanding the records is the subject of a motion to quash, scheduled to be heard on September 4, 2026. This Court previous quashed a subpoena or those records on February 10, 2026, on the grounds that the subpoena was overbroad. Separately, Cross-Complainants' motion for summary adjudication, filed on April 20, 2026, is also scheduled to be heard on September 4, 2026. Caferoglu argues that continuance is necessary to allow him to obtain the records before trial and before the MSA, and depose Cross-Complainants, whose depositions have been held up by his inability to obtain the bank records.

Grounds for granting a trial continuance include a party's inability to obtain essential testimony, documents or other material despite diligent efforts. (Cal. Rules of Court, rule 3.1332, subd. (c)(6).) On a motion to continue trial, evidence is essential if the material is not cumulative, can be obtained within a reasonable time, and the facts could not otherwise be proven. (*See, e.g., Jensen v. Superior Ct.* (2008) 160 Cal.App.4th 266, 270.)

Here, the Court finds that the bank records in question are potentially relevant to establishing the scope of Caferoglu's authority in his role related to Stamp and Zeyher, and on the current record, the issue of his check-writing authority cannot be proven by other means.

Caferoglu has been diligent in seeking the bank records at issue. He initially subpoenaed the records over one year ago, on July 8, 2025. Cross-Complainants moved to quash the subpoena and, given the ongoing backlog on the Court's law and motion calendar, the motion was not heard until early 2026. On February 10, 2026, the Court quashed the subpoena on grounds that it was overbroad. On February 26, 2026, Caferoglu served a revised subpoena for the bank records, narrowing the scope of the records sought. On March 25, 2026, Cross-Defendants again moved to quash the subpoena, and a hearing was set for September 4, 2026, more than five months out. Caferoglu then contacted opposing counsel on April 3, 2026, and requested a continuance of trial, which opposing counsel rejected. On April 20, 2026, Cross-Complainants moved for summary adjudication regarding the issue of whether Caferoglu is obligated under the June 12, 2024 settlement agreement to indemnify Cross-Complainants for 50% of defense costs and liability incurred in the *Erbay* action. Three days later, on April 23, 2026, Caferoglu filed the instant motion to continue trial.

Under those facts, Caferoglu has been generally diligent in seeking the outstanding financial records at issue in this motion. The Court does note there was no ex parte application to advance the motion to quash hearing, which would have been expected.

Nevertheless, the factors under rule 3.1332, subd. (d), weigh in favor of Caferoglu. Trial is set to begin on November 2, 2026. Caferoglu's motion was not made in close proximity to trial. Significantly no previous continuance has been granted, nor has trial otherwise been delayed. The Cross-Complaint was filed less than two years ago, on October 29, 2024. The length of the requested continuance is only six months. On the current record, Caferoglu cannot obtain proof that he did not have check-writing authority by other means than the bank records at issue here. Further, beyond the delay itself, there has not been an adequate showing that a continuance would otherwise prejudice Cross-Complainants.

Accordingly, Cross-Defendant Caferoglu's motion to continue trial is GRANTED.

The current trial date of November 2, 2026, and current Mandatory Settlement Conference and Pretrial Conference, are all VACATED. All related pretrial deadlines, including discovery cut-offs, shall move with the new trial date.

Trial in this matter continued to May 3, 2027 at 2:00 p.m. in Dept. 20 / Courtroom L.

Pretrial Conference is continued to April 19, 2027 at 10:00 a.m. in Dept. 20 / Courtroom L.

Mandatory Settlement Conference is continued to March 19, 2027 at 9:00 a.m., subject to change per the assigned MSC department.

The Court further ORDERS that the hearing for Cross-Defendants' MSA is continued to January 8, 2027 at 9:00 a.m. in Dept. 20 / Courtroom L. Deadlines for the opposition and reply briefs to the MSA shall move with the new hearing date.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM
Line 3
25-CIV-01784 TODD ANDREW RAEL, ET AL VS. GENERAL MOTORS, LLC.

TODD ANDREW RAEL	LARRY W CHAE
GENERAL MOTORS, LLC.	KRISTEN ALLISON

Defendant's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

The Demurrer brought by Defendant General Motors, LLC ("GM") is OVERRULED.

Background

Per the allegations of the First Amended Complaint ("FAC"), on or about April 16, 2019, Plaintiffs entered into a warranty contract (FAC, Exh. A) with Defendant GM regarding a 2019 Chevrolet Silverado 1500 (the "Vehicle") which was manufactured or distributed by Defendant GM, and which Plaintiffs purchased from Defendant GM's authorized dealer. The Vehicle bears defects and nonconformities to the warranty which manifested during the warranty period, including defects in its electrical systems and transmission, *inter alia*, despite Plaintiffs' diligently maintaining the Vehicle and presenting it for repairs when nonconformities manifested or repairs were required. Each time Plaintiffs picked up the Vehicle from Defendant GM's repair facilities, Defendant GM's technicians represented that the Vehicle had been repaired or was working as designed. Given these misrepresentations, Plaintiffs had no way of uncovering Defendant GM's deception regarding the Vehicle's defects.

The Vehicle's defects and nonconformities impair its use, value, or safety, and render its value worthless or *de minimis*. Despite its affirmative duty to do so under the Song-Beverly Act, Defendant GM refuses to replace or repurchase the Vehicle after a reasonable number of failed attempts to repair its defects.

Defendant GM demurs generally to the fourth and fifth causes of action of the FAC, asking that leave to amend be denied.

Legal Standards for Demurrer

Code of Civil Procedure section 430.30 provides that an objection to a complaint may be made via demurrer when the ground for that objection appears on the face of the complaint (or via judicial notice, which is not sought here). (Code Civ. Proc., § 430.30, subd. (a).) Code of Civil Procedure section 430.50 provides that a demurrer to a complaint may be taken to "any of the causes of action stated therein." (Code Civ. Proc., § 430.50, subd. (a).)

Code of Civil Procedure section 430.10 sets forth eight possible grounds for demurrer, including that "[t]he pleading does not state facts sufficient to constitute a cause of action" (Code Civ. Proc., § 430.30, subd. (e)). A demurrer founded on section 430.10, subdivision (e), is called a "general demurrer." (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77.) Accordingly, "[a] ruling on a general demurrer is thus a method of deciding the merits of a cause of action on *assumed facts* without a trial." (*Ibid*. (internal quotations omitted) (emphasis added).) Since a general demurrer "admits the truth of all material factual allegations in the complaint," a plaintiff's ability to prove these allegations "does not concern the reviewing court. The plaintiffs need only plead facts showing that they may be entitled to some relief." (*Fisher v. San Pedro Peninsula Hosp.* (1989) 214 Cal.App.3d 590, 604 (*Fisher*) (internal quotations omitted) (superseded by statute on other grounds).)

Though when a complaint sounds in fraud:

> In California, fraud must be pled specifically; general and conclusory allegations do not suffice. "Thus 'the policy of liberal construction of the pleadings ... will not ordinarily be invoked to sustain a pleading defective in any material respect.' This particularity requirement necessitates pleading *facts* which 'show how, when, where, to whom, and by what means the representations were tendered.'"

(*Lazar v. Superior Ct.* (1996) 12 Cal.4th 631, 645 (internal citations omitted) (emphasis retained).) When fraud is claimed against a corporation, the plaintiff must "allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

However, this heightened pleading standard "is relaxed when the allegations indicate that 'the defendant must necessarily possess full information concerning the facts of the controversy' or 'when the facts lie more in the knowledge of the opposite party[.]'" (*Tarmann, supra*, 2 Cal.App.4th 153, 158 (internal quotations omitted) (citations omitted).) This exception to the heightened pleading standard for fraud applies where, as here, the information about Defendant GM's wrongdoing lies primarily within Defendant GM's knowledge (*see, e.g.*, FAC, ¶¶ 78 & 80). "[I]t is harder to apply [the heightened pleading requirement] to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?'" (*Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 (*Alfaro*).)

In addition, a court reviewing a demurrer does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Nonetheless:

> If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer. "[W]e are not limited to plaintiffs' theory of recovery in testing the sufficiency of their complaint against a demurrer, but instead must determine if the *factual* allegations of the complaint are adequate to state a cause of action under any legal theory. The courts of this state have ... long since departed from holding a plaintiff strictly to the 'form of action' he has pleaded and instead have adopted the more flexible approach of examining the facts alleged to determine if a demurrer should be sustained."

(*Quelimane Co. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 38–39 (citations omitted) (italics retained).) Moreover, when a plaintiff "has stated a cause of action *under any possible legal theory*," it is error to sustain a demurrer. (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200 (emphasis added).) Further:

> the court is required to look at the existing pleading and hazard its best judgment whether behind the words of the pleading anything of legal substance lies, whether on further revision the pleading can honestly state a cause of action.

(*Tovar v. S. Cal. Edison Co.* (1988) 201 Cal.App.3d 606, 615.)

Finally, "it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379.)

The Demurrer Is Overruled As to the Fourth Cause of Action.

Defendant GM asserts that the fourth cause of action of the FAC, for breach of the implied warranty of merchantability, is time-barred by the applicable four-year statute of limitations. (Com. Code, § 2725.) Defendant GM argues that since the implied warranty arises by operation of law, it is not prospective, so that the cause of action accrues when breach occurs and the delayed discovery rule does not apply.

The cited statute provides in pertinent part that:

> A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.

(Com. Code, § 2725, subd. (b)(2).)

In addition, the Song-Beverly Act specifies that the implied warranty of merchantability is prospective and has a maximum duration of one year. (Civ. Code, § 1791.1, subd. (c).) The Court of Appeal explains that the Song-Beverly Act does not include its own statute of limitations, and adopts the four-year statute of limitations of the Uniform Commercial Code ("UCC") (*Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1305-06 (*Mexia*)), but the Song-Beverly Act defines "a duration for the implied warranties" pursuant to itself (*Mexia, supra*, 174 Cal.App.4th 1297, 1304). In particular;

> the plain language of the statute, particularly in light of the consumer protection policies supporting the Song–Beverly Act, make clear that the statute merely creates a limited, prospective duration for the implied warranty of merchantability; it does not create a deadline for discovering latent defects or for giving notice to the seller.

(*Mexia, supra*, 174 Cal.App.4th 1297, 1301.) Further, "The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (*Mexia, supra*, 174 Cal.App.4th 1297, 1304-05 (citations omitted).)

Defendant GM asserts that Plaintiffs' reading of *Mexia* to hold that the discovery rule applies to the implied warranty of merchantability is incorrect, because "*Mexia* clearly states: 'In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, *not by its subsequent discovery*.['] (*Id.* at p. 1305, emphasis added.)" (Reply, 2:17-19.) However, as quoted *supra*, *Mexia* also clearly states that, "The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (*Mexia, supra*, 174 Cal.App.4th 1297, 1304-05 (citations omitted).) Clarifying its position consistent with the latter statement, the *Mexia* Court further explains that:

> To say that a warranty exists is to say that a cause of action can arise for its breach. Defining the time period during which the implied warranty exists, therefore, also defines the time period during which the warranty can be breached. Thus, by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery. As discussed above, this is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery. Giving the implied warranty a prospective existence, however, is not new under the law. Prior to the adoption of the Uniform Commercial Code, California courts recognized that the implied warranty of merchantability could have a prospective existence.

(*Mexia, supra*, 174 Cal.App.4th 1297, 1309 (citations omitted).)

Moreover:

> In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.

(*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-16 (internal quotation and citations omitted).)

Here, taking the allegations of the FAC to be true as it must on demurrer, and applying the delayed discovery rule in this context as directed by *Mexia*, the Court finds that it does not clearly and affirmatively appear on the face of the FAC that the fourth cause of action is time-barred.

It Does Not Clearly and Affirmatively Appear on the Face of the FAC That the Fifth Cause of Action Is Time-Barred.

Defendant GM asserts that the fifth cause of action of the FAC, for fraudulent inducement – concealment, is time-barred by the applicable three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d).) This statute provides that the time for bringing an action other than to recover realty is:

> Within three years: …
>
> An action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.

(*Ibid*.) Also, again:

> In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.

(*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-16 (internal quotation and citations omitted).)

Defendant GM argues that the allegations of the FAC do not support the application of the delayed discovery rule, in that they allege that defects and nonconformities manifested themselves within the warranty period (FAC, ¶ 23) and do not show that Plaintiffs could not have discovered the defects despite reasonable diligence.

The Court of Appeal explains that:

> The statute commences to run only after one has knowledge of facts sufficient to make a reasonably prudent person suspicious of fraud, thus putting him on inquiry. Section 19 of the Civil Code provides: "Every person who has actual notice of circumstances *sufficient to put a prudent man upon inquiry* as to a particular fact, has constructive notice of the fact itself in all cases in which, by prosecuting such inquiry, he might have learned such fact." (Italics added.) Under this section it was held in *Tarke v. Bingham,* 123 Cal. 163 [55 P. 759], that the plaintiff was not barred by subdivision 4 of section 338 of the Code of Civil Procedure, since nothing had occurred "to excite his suspicion, or to put him upon inquiry." (123 Cal. at p. 166.) The court said: "Where no duty is imposed by law upon a person to make inquiry, and where under the circumstances 'a prudent man' would not be put upon inquiry, the mere fact that means of knowledge are open to a plaintiff, and he has not availed himself of them, does not debar him from relief when thereafter he shall make actual discovery. *The circumstances must be such that the inquiry becomes a duty, and the failure to make it a negligent omission."* (Italics added.) Many other decisions have adopted this view. In many cases it has been said that means of knowledge are equivalent to knowledge. This is true, however, only where there is a duty to inquire, as where plaintiff is aware of facts which would make a reasonably prudent person suspicious. In the Lady Washington case, the court said (113 Cal. at p. 487) that "as the means of knowledge are equivalent to knowledge, *if it appears that the plaintiff had notice or information of circumstances which would put him on an inquiry* which, if followed, would lead to knowledge, or that the facts were presumptively within his knowledge, he will be deemed to have had actual knowledge of these facts." (Italics added.)

(*Hobart v. Hobart Estate Co.* 26 Cal.2d 412, 437–39 (italics retained) (multiple citations omitted).)

Plaintiffs point out that they need not have suspected that Defendant GM was deceiving them merely because they brought the Vehicle in for service during the warranty period. "A reasonable individual with car troubles, even on several occasions, would not immediately suspect their entire engine was defective, and also that the defect was known and concealed by the manufacturer." (Opp., 7:16-18.) Indeed:

> There is no duty resting upon a citizen to suspect the honesty of those with whom he [or she] transacts business. Laws are made to protect the trusting as well as the suspicious. [T]he rule of caveat emptor should not be relied upon to reward fraud and deception.

(*Boschma v. Home Loan Ctr., Inc.* (2011) 198 Cal.App.4th 230, 249 (*Boschma*) (internal quotations and citation omitted).)

The allegations of the FAC show clearly that Plaintiffs could not have discovered, and in fact did not discover, the defects despite their reasonable diligence. The FAC alleges that Plaintiffs took the Vehicle in for maintenance and repair multiple times, and each time, Defendant GM's repair technicians represented that the Vehicle had been repaired or was working as designed, so that in reasonable reliance on these misrepresentations, Plaintiffs had no way of uncovering Defendant GM's deception regarding the Vehicle's defects. (FAC, ¶¶ 11-19.) Under *Boschma*, Plaintiffs had no duty to suspect the honesty of Defendant GM's repair facilities.

The Court finds that it does not clearly and affirmatively appear on the face of the FAC that the fifth cause of action is time-barred.

The Fifth Cause of Action Is Sufficiently Pled.

> The elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.

(*Jones v. ConocoPhillips Co*. (2011) 198 Cal.App.4th 1187, 1198 (*Jones*) (internal quotations omitted) (citations omitted).) Though fraud must be pleaded specifically (*Lazar v. Superior Ct*. (1996) 12 Cal.4th 631, 645), this heightened pleading standard "is relaxed when the allegations indicate that 'the defendant must necessarily possess full information concerning the facts of the controversy' or 'when the facts lie more in the knowledge of the opposite party[.]'" (*Tarmann, supra*, 2 Cal.App.4th 153, 158 (internal quotations omitted) (citations omitted).)

Defendant GM asserts that the FAC does not state facts sufficient to plead the fifth cause of action, and does not allege a transactional relationship that gives rise to a duty of Defendant GM to disclose. Defendant GM ignores this exception to the heightened pleading standard for fraud, which applies where, as here, the information about Defendant GM's wrongdoing lies primarily within Defendant's knowledge. (*Alfaro, supra,* 171 Cal.App.4th 1356, 1384.)

Here, without even reaching the previous paragraphs of the FAC which are incorporated by reference (FAC, ¶ 74), the *Jones* elements are sufficiently pled, as follows: (1) (*see, e.g.*, *id.*, ¶¶ 75-76); (2) (*see, e.g.*, *id.*, ¶ 82); (3) (*see, e.g.*, *id.*, ¶¶ 80, 83); (4) (*see, e.g.*, *id.*, ¶¶ 79-80); and (5) (*see, e.g.*, *id.*, ¶ 86).

Defendant GM relies on *Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1 (*Rattagan*), for five specific kinds of allegations that must be included in the FAC. However, the *Rattagan* Court distinguishes cases like the instant and *Dhital v. Nissan North America, Inc*. (2022) 84 Cal.App.5th 828 (*Dhital*), which "involve claims of fraudulent inducement by concealment claims *as well as* the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1791 et seq.). We do not address these issues here." (*Rattagan, supra,* 17 Cal.5th 1, 41, n.12 (emphasis added).) The *Rattagan* Court confirmed that "it has long been the rule that where a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for the fraud" (*Rattagan, supra,* 17 Cal.5th 1, 41, quoting *Lazar*), going on to state that, "The same may not necessarily be true of fraudulent concealment claims based on conduct occurring after the contract has been formed." (*Rattagan, supra,* 17 Cal.5th 1, 41.)]

Here, Plaintiffs allege fraudulent inducement by concealment prior to their purchase of the Vehicle, and that they would not have purchased the Vehicle but for Defendant GM's fraud. (FAC, ¶¶ 79, 80, 84 & 86.) However, Plaintiffs further allege that Defendant GM continued to conceal the alleged defects and the inability to repair them after the contract was formed, so that it was difficult for Plaintiffs to discover Defendant GM's wrongdoing given Defendant GM's failure to disclose at successive repair visits. (*Id*., ¶¶ 57, 59, 67, 68, 70, 74-78; *see also* ¶¶ 30, 34.)

Since the *Rattagan* Court explicitly distinguished cases such as the instant, which involves this cause of action for fraudulent inducement by concealment as well as claims sounding in the Song-Beverly Act so that any resulting remedies will involve the interplay of the causes of action, *Dhital*, rather than the *Rattagan* factors, applies here. Nonetheless, the *Rattagan* factors are amply satisfied in the fifth cause of action alone, without even reaching the previous paragraphs of the FAC which are incorporated by reference (*id*., ¶ 74):

> (1) the content of the omitted facts (*see, e.g.*, FAC, ¶¶ 75-77, 81);
>
> (2) Defendant GM's awareness of the materiality of those facts (*see, e.g.*, *id.*, ¶¶ 76-78, 80-81);
>
> (3) the inaccessibility of the facts to Plaintiffs (*see, e.g.*, *id*., ¶¶ 78-80);
>
> (4) the general point at which the omitted facts should or could have been revealed (*see, e.g.*, *id*., ¶¶ 81, 85); and
>
> (5) justifiable and actual reliance, either through action or forbearance, based on Defendant GM's omission (*see, e.g.*, *id*., ¶¶ 79-80, 82, 85-86).

Here, as in *Dhital*:

> Plaintiffs alleged the above elements of fraud in the SAC. As we have discussed, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.

(*Dhital, supra*, 84 Cal.App.5th 828, 844.) Further:

> Nissan also contends plaintiffs did not provide specifics about what Nissan should have disclosed. But plaintiffs alleged the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function. The SAC also alleged Nissan was aware of the defects as a result of premarket testing and consumer complaints that were made both to the National Highway Traffic Safety Administration and to Nissan and its dealers. It is not clear what additional information Nissan believes should have been included. We decline to hold (again in the absence of a more developed argument on this point) that plaintiffs were required to include in the SAC more detailed allegations about the alleged defects in the CVT transmissions. We conclude plaintiffs' fraud claim was adequately pleaded.

(*Ibid*. (footnote omitted).) Under *Dhital*, the FAC's allegations of fraud suffice to survive demurrer. (*See, e.g.*, FAC, ¶¶ 76-78, 80-82, 84, & 86.)

Yet Defendant GM asserts that since it did not deal directly with Plaintiffs, as a seller and buyer or transacting parties might, it owed Plaintiffs no duty to disclose. However, as the Court of Appeal explains:

> In its short argument on this point in its appellate brief, Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

(*Dhital, supra*, 84 Cal.App.5th 828, 844.) Here, Plaintiffs allege that they bought the Vehicle from a named authorized dealership of Defendant GM (FAC, ¶ 8), that Defendant GM backed the Vehicle with an express warranty (*id*., ¶¶ 1-2, & Exh. A), and implicitly that "Defendant GM's authorized retail dealership Stewart Chevrolet" was Defendant GM's agent for purposes of the sale of its vehicles to consumers (*id*., ¶ 8; *see also* ¶ 80). On the last point, Defendant GM emphasizes that even if *Dhital* were applied, Plaintiffs do not allege that they bought the Vehicle from Defendant GM's agent, unlike in *Dhital*. However, such agency is implicit in the allegation that "Defendant GM's authorized retail dealership Stewart Chevrolet" was Defendant GM's agent for purposes of the sale of its vehicles to consumers. (FAC, ¶ 8; *see also* ¶ 80.) Since Plaintiffs "need only plead facts showing that they *may* be entitled to some relief" (*Fisher, supra*, 214 Cal.App.3d 590, 604 (emphasis added)), the allegations of the FAC suffice to survive demurrer, especially in light of *Dhital*, which in any case did not require such an allegation but included it as an example of what was there pled as part of a cause of action which was deemed overall to suffice. The Court declines to hold that the fifth cause of action is barred on the ground that no relationship between the parties required Defendant GM to disclose known defects.

Further, privity between the parties is not required, as is clear in that Defendant GM's duty to disclose applies not only to the initial purchaser of a vehicle, but to subsequent purchasers as well where, as here. the manufacturer has reason to know that the vehicle will be resold. (*OCM Principal Opportunities Fund v. CIBC World Markets Corp*. (2007) 157 Cal.App.4th 835, 859-860; *see also Barnhouse v. City of Pinole* (1982) 133 Cal.App.3d 171, 191 ("An action for deceit does not require privity of contract." (quotations and citations omitted).)

The Fifth Cause of Action Is Not Barred by the Economic Loss Rule.

Defendant GM asserts that the fifth cause of action is barred by the economic loss rule and the independent tort principle because Plaintiffs cannot establish the elements of this cause of action independently of the parties' contractual rights and obligations. "The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (citation omitted).)

To the contrary, Plaintiffs cite *Dhital* and *Lazar*. The latter makes the point that:

> Contrary to defendant's arguments, fraudulent inducement of contract—as the very phrase suggests—is not a context where the "traditional separation of tort and contract law" obtains. To the contrary, this area of the law traditionally has involved both contract and tort principles and procedures. For example, it has long been the rule that where a contract is secured by fraudulent representations, the injured party may elect to affirm the contract and sue for the fraud.

(*Lazar v. Super. Ct*. (1996) 12 Cal.4th 631, 645 (citations omitted).) As *Dhital* holds many times over: "[U]nder California law, the economic loss rule does not bar plaintiffs' fraudulent inducement claim." (*Dhital, supra*, 84 Cal.App.5th 828, 833; *see also id*., 837, 839, 841, & 843.)

As such, the Demurrer is OVERRULED. Defendant to file its Answer within ten days after service of the Order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be <u>filed or e-filed only</u>, do not email or mail a hard copy to the Court.

9:00 AM
Line 4
25-CIV-08305 LUISA CABRERA, ET AL VS. UDR BAY TERRACE L.P., ET AL

LUISA CABRERA	MICHAEL M ASTANEHE
UDR TEXAS PROPERTIES LP	STACY M. DOOLEY

Defendant UDR Texas Properties L.P.'s Motion to Compel Plaintiffs' Responses to Request for Production of Documents, Set One; and request for Sanctions for $3,500.00

TENTATIVE RULING:

Defendant UDR Texas Properties LP's ("Defendant") unopposed motion to compel further responses to Defendant's Request for Production of Documents ("RFPs") (Set One), and to compel production of documents, and request for sanctions, filed May 6, 2026, is GRANTED-in-part and DENIED-in-part, as set forth below.

The motion to compel <u>further responses</u> to the RFPs is GRANTED. For each of the 99 RFPs, Plaintiffs have asserted a long list of objections, followed by the following statement:

> Without waiving the above objections, Responding Party responds as follows: Responding Party complies with this request for production in full pursuant to California Code of Civil Procedure section 2031.030(c)(2)(c), and all documents or things in the requested category in Responding Party's possession, custody, or control of Responding Party. Please see Responding Party's concurrent document production, specifically [followed by a long list of different categories of documents]

The foregoing is not a code-complaint statement of compliance. First, each of Plaintiffs' RFP responses purports to comply with Code Civ. Proc. § 2031.030(c)(2)(c), which is not an applicable statute. § 2031.030 does not pertain to RFP responses, and the cited subsection (§ 2031.030(c)(2)(c)) does not exist. The applicable statute is Code Civ. Proc. § 2031.222, which states:

> A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

For each response, if Plaintiffs are agreeing to comply in full, their response should track the language of § 2031.222.

Further, each RFP response includes an incomplete sentence, which makes it unclear whether Plaintiffs are agreeing to produce all responsive documents (“Responding Party complies with this request … and all documents and things in the requested category in Responding Party’s possession, custody, or control of Responding Party.”)

Within 20 days of service of this Order, Plaintiffs shall provide further responses that comply with Section 2031.222.

The motion to compel Plaintiffs to <u>identify which produced documents are responsive to which RFPs</u> is also GRANTED. Code Civ. Proc. § 2031.280 states:

> (a) Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.

Here, in response to Defendant’s RFPs, although Plaintiffs have separated the roughly 70,000 pages of produced documents into different categories, Plaintiffs appear to have identified all of the roughly 70,000 pages of documents as being responsive to each of the 99 RFPs. This is not a good faith statement of compliance with § 2031.280, because it leave Defendant guessing at to which of the nearly 70,000 pages are responsive to each RFP.

Within 20 days of service of this Order, Plaintiffs shall provide a further response identifying, specifically, which of the produced documents are responsive to each RFP, in compliance with Section 2031.280.

Finally, for any responsive documents that have been withheld from production due to any claimed privilege, Plaintiffs shall serve upon Defendant, within 20 days of this Order, a privilege log identifying each withheld document. (Code Civ. Proc. § 2031.240(c)(1).)

In the Court’s discretion, Defendant’s <u>request for monetary sanctions</u> is GRANTED-in-part, in the amount of $1,000, against Plaintiffs and their counsel, Michael Astanehe, jointly and severally, which shall be paid within 30 days of notice of entry of this Order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be <u>filed or e-filed only</u>, do not email or mail a hard copy to the Court.

9:00 AM
Line 5
25-CIV-08305 LUISA CABRERA, ET AL VS. UDR BAY TERRACE L.P., ET AL

LUISA CABRERA	MICHAEL M ASTANEHE
UDR TEXAS PROPERTIES LP	STACY M. DOOLEY

Defendant UDR Texas Properties L.P.'s Motion to Compel Plaintiffs' Responses to Form Interrogatories – General, Set One and Special Interrogatories, Set One; and Request for Sanctions for $3,500.00

TENTATIVE RULING:

Defendant UDR Texas Properties LP's ("Defendant") unopposed motion to compel Plaintiffs to serve further responses to Defendant's Form Interrogatories (Set One) and Special Interrogatories (Set One), and request for sanctions, filed May 6, 2026, is GRANTED-in-part and DENIED-in-part, as set forth below.

Form Interrogatories – DENIED without prejudice

Defendant does not appear to have filed a Separate Statement setting forth the disputed form interrogatories and Plaintiffs' corresponding responses. (Calif. Rules of Court, rule 3.1345.)

Special Interrogatories - GRANTED

Plaintiffs' response to each of the 247 Special Interrogatories consists of a laundry list of objections, followed by the statement:

> "Responding Party cannot identify each and every fact responsive to this special interrogatory due to the multi-year nature of the tenancy."

Although 247 special interrogatories far exceeds the statutory limit of 35 (Code Civ. Proc. § 2030.030(b)), Plaintiffs did not file a motion for protective order based on the large number of interrogatories. Plaintiffs' responses are plainly deficient, because they provide no responsive information at all. Plaintiffs also have not opposed the present motion.

The Court notes that while the number of special interrogatories is large, they are closely tied to the Complaint's allegations, which consists of 58 pages of allegations and 12 asserted causes of action.

Within 20 days of service of this Order, Plaintiffs shall provide further, verified, code-compliant responses to all 247 of Defendant's Special Interrogatories (Set One).

Monetary Sanctions – GRANTED-in-part

As noted, Plaintiffs did not file a motion for protective order (Code Civ. Proc. § 2030.090) and have not opposed this motion. When Defendants noticed an Informal Discovery Conference (IDC), Plaintiffs also failed to file an IDC Statement, which the Commissioner noted "largely renders the holding of an IDC an unproductive use of time." (June 22, 2026 Minute Order.) This left Defendant with no option but to move to compel further responses.

In the Court's discretion, Defendant's request for monetary sanctions is GRANTED-in-part, in the amount of $1,000, against Plaintiffs and their counsel, Michael Astanehe, jointly and severally, which shall be paid within 30 days of notice of entry of this Order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM
Line 6

25-CIV-09662 MICHAEL MULATE ARGAW VS. MARK ZUCKERBERG, CEO OF META PLATFORMS INC., ET AL

MICHAEL MULATE ARGAW	PRO SE
MARK ZUCKERBERG, CEO OF META PLATFORMS INC.	MICHELLE VISSER

Defendants' Demurrer to Complaint

TENTATIVE RULING:

Defendants Mark Zuckerberg's and Meta Platforms, Inc.'s Demurrer to Complaint is ORDERED OFF CALENDAR.

The proof of service of the notice of demurrer and the accompanying papers indicates service was attempted by mail and electronic mail. (Mar. 20, 2026 Proof of Service, p. 2.) As to the latter manner of service, there is no indication that Plaintiff Michael Mulate Argaw has expressly consented to electronic service as an unrepresented party, which is required. (See Code Civ. Proc., § 1010.6, subd. (c) [requiring express consent to e-serve party appearing in propria persona]; Cal. Rules of Court, rule 2.251(b).)

As to the former, the mail was addressed to Argaw at 23940 Summit Ridge Terrace, Germantown, Maryland 20870. While apparently that may be Argaw's address of record in prior or other pending cases, his address of record *in this case* is 12220 Hunter's Chase Drive, Austin, Texas 78729. (Dec. 10, 2025 Complaint, p. 1; see Code Civ. Proc., § 1013, subd. (a) [mail must be addressed to office or residence]; Cal. Rules of Court, rule 2.111(1) [office or address is to be listed on first page of filing].)

Accordingly, there is no indication that notice of the demurrer was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Therefore, the demurrer is ordered off calendar.

The hearing on the demurrer may be placed back on calendar by Defendants Mark Zuckerberg and Meta Platforms, Inc. by properly serving the demurrer and supporting papers along with filing and serving an amended notice of demurrer. If an amended notice is not filed within ten (10) days of entry of this order, then, at that time, the demurrer will be deemed overruled and Defendants Mark Zuckerberg and Meta Platforms, Inc. will have ten (10) days to answer or otherwise plead to the Complaint pursuant to rule 3.1320(j) of the California Rules of Court.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

10:00 AM
Line 1
23-CLJ-05977 UNIFUND CCR, LLC vs. CAROLINA SILVA-MIRANDA

UNIFUND CCR, LLC	SPENCER PENUELA
CAROLINA SILVA-MIRANDA	ADAM FULLMAN

Plaintiff's Motion for Entry of Judgment

TENTATIVE RULING:

Plaintiff Unifund CCR, LLC's Motion for Entry of Judgment is not opposed and is GRANTED. The Declaration of Plaintiff's Counsel Spencer Penuela filed 7/13/2026 attaches a copy of the relevant Settlement Agreement and Stipulation for Entry of Judgment upon Default (the "Stipulation"), establishing the settlement terms, defendant Carolina Silva-Miranda's uncured default and its counsel's non-response, allowing entry of Judgment. Penuela Decl. ¶¶ 4-6 and Exh. 1. The Stipulation expressly allows for enforcement of its terms under Code of Civil Procedure Section 664.6. Penuela Delc., Exh. 1 – Stipulation ¶ 3.

The Court orders Judgment in favor of Plaintiff and against Defendant for $11,698.92 in principle, plus $384.07 in court costs, for a total Judgment of $12,082.99.

If uncontested, the Court will sign and serve the proposed Order and proposed Judgment submitted with the motion, and waives any other order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

10:00 AM
Line 2

25-CIV-07088 GV SOURCE LLC AND ROGER AMANDO PENA vs. ALEJANDRO F. GRAHAM

GV SOURCE LLC AND ROGER AMANDO PENA	VINOD NICHANI
ALEJANDRO F. GRAHAM	Pro Se / CHRISTINE SINNOTT SPECIALLY APPEARING

Defendant's Motion to Quash Service of Complaint and Summons

TENTATIVE RULING:

After review of the moving papers, opposition and reply, specially appearing Defendant Alejandro F. Graham's ("Defendant") Motion to Quash Service of Summons is GRANTED.

On February 2, 2026, the Court issued an Order allowing alternate service under Code of Civil Procedure ("CCP") Section 413.30 via email and substitute service on two out of state addresses. On April 27, 2026, the Court amended that Order to remove one of the out of state addresses for service. These Orders were based on applications of Plaintiff that demonstrated, at the time, that Plaintiff had been making diligent attempts to effect service, and that therefore electronic service to Defendant and substitute service to Defendant's alleged last know out of state address were "reasonably calculated to give actual notice to the party to be served." CCP § 413.30(a)(1).

However, Defendant moves to quash service on the basis that service must be in compliance with the Hague Service Convention, as Defendant is a citizen and resident of Nicaragua. Motion, pg. 2, ¶ 2. Defendant declares he is a resident and citizen of the country of Nicaragua, and has never resided in the United States. Graham Decl. of 7/1/26, ¶¶ 2-3. Defendant provides that the United States is a member of the Hague Service Convention. Def. MPA, pg. 1, ¶ 1. Defendant did not provide that Nicaragua is also a member of the Hague Service Convention, though Plaintiff also did not argue this to the contrary either. Regardless, the Court takes Judicial Notice under Evidence Code Section 452(f)-(h), that Nicaragua is a member of the Hague Service Convention. See, Hague Service Convention Website indicating Nicaragua joined the service convention on July 24, 2019.

> "The scope of the Hauge Service Convention is extremely broad. Article 1 of the Convention provides: The present Convention shall apply in all cases, in civil or commercial matters, where there is occasion to transmit a judicial or extrajudicial document for service abroad. [¶] This Convention shall not apply where the address of the person to be served with the document is not known."

Kott v. Superior Court (1996) 45 Cal.App.4th 1126, 1133

That exception of the address not being known, has the requirement that a party demonstrate reasonable diligence to discover such an address. Id. at 1137. *In accord, Label v. Mai* (2012) 210 Cal.App.4th 1154, 1161. Failure to comply with the Hague Service Convention when it does apply, "voids the service even though it was made in compliance with California law." *Kott v. Superior Court* (1996) 45 Cal.App.4th 1126, 1136.

Plaintiff's opposition focuses on the diligent efforts at certain last known domestic addresses. Plaintiff's Declaration then states that in February 2026, he was informed by Defendant's brother that Defendant was living in Panama with his mother. Pena Decl., ¶ 4. However, this statement lacks detail and standing alone it is arguably inadmissible hearsay. More significantly, throughout its prior ex parte applications, and its opposition papers, Plaintiffs have never indicated any knowledge, or lack of knowledge, of Defendant residing in Nicaragua. This omission is questionable considering the reply papers.

Per the reply, defense counsel contends that "Plaintiff was well aware of the residence and address of the defendant in Nicaragua at the time he applied for alternative service. *This fact was never disclosed to the court*." Reply, pg. 2, lines 13-16 (emphasis added). The Court agrees, this was not disclosed as it must. Defendant then provides by sworn declaration, that Plaintiff Pena actually visited Defendant Graham, at his home on "numerous occasions" in Managua, Nicaragua. Graham Reply Decl., pg. 2, ¶ 2. One who physically visits a home, would clearly know the address of said home in Nicaragua. Therefore the exception is not applicable, the Hague Service Convention applies, and the prior alternate service is improper.

The motion is GRANTED. As a result, the Court's February 4, 2026 and April 27, 2026 Orders for alternate service, are rescinded and vacated; the related two Proofs of Service of Summons filed on June 5, 2026 are thus quashed.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.